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No One Should Own the Law: Why Government Standards Should Be Public



Transparency public Parliament recently passed the Jan Vishwas law, a move to "liberate governance from the steel cage". FILE PHOTO

No one should own the law: why government standards should be public

As part of the implementation of the Jan Vishwas framework, it has been proposed that all edicts of government be centrally published and that any such edict not publicly accessible be treated as null and void – a principle that should extend to public safety standards as well

Carl Malamud

The principle that rules governing public life must be widely accessible is not new to India. The first Indian road safety standard dates back to Emperor Ashoka, who commanded that his edicts of government be broadly disseminated throughout the land. The 7th Pillar Edict, now located in Delhi, had an extensive section on road safety.

Today, this work continues under the auspices of the Indian Roads Congress. While ostensibly a non-profit association, it is actually an arm of the government. It is subject to Right to Information Act. Its website is maintained by the Network Information Centre, and its governing council is predominantly composed of government officials. It is a law-making enterprise with the force of the state.

The Indian Roads Congress publishes hundreds of standards, guidelines, and specifications relating to road safety and construction. These documents cover a wide range of technical matters, including route signage for national highways, vehicle design dimensions and weights, and the design of prestressed concrete road bridges.

These standards are widely incorporated into government practice appearing in subordinate legislation as well as in regulations issued by bodies such as the National Rural Infrastructure Development Agency and the Ministry of Road Transport and Highways. The standards are also an integral part of the road construction efforts by the States and are frequently referred to in judicial opinions.

For over a decade, I've been systematically purchasing, scanning, and posting these road edicts on my website and on the Internet Archive, a non-profit public library based in the U.S. Many of these standards have been accessed tens of thousands of times, with even government agencies themselves reproducing and hosting copies. This work is entirely non-commercial: no fees are charged for access, no intellectual

property rights are asserted, and the source of every document is clearly identified. The underlying principle is straightforward – edicts of government constitute the raw materials of democracy, and a truly informed citizenry is indispensable to ensuring a government not merely for the people, but by the people.

Recently, a "takedown" notice was issued by the Indian Roads Congress – a demand for the immediate removal of its purportedly proprietary works accompanied by threats of legal consequences for non-compliance. That demand has not been complied with, and it is necessary to explain why.

My nonprofit makes edicts of government available; it is the essence of our mission. In India, this included posting of over 14,000 Indian Standards issued by the Bureau of Indian Standards (BIS). Like the standards of the Indian Roads Congress, BIS standards are an integral part of public safety. It is impossible to meaningfully advance initiatives such as "Make in India" without ensuring "safe in India." These standards cover critical areas including the National Building Code, safety requirements for motorcycle helmets and drinking water, procedures for entering sewer systems, the operation of agricultural and textile machinery, and construction practices in areas prone to typhoons. Like the Indian Roads Congress, an elaborate law-making process is used before an Indian Standard is issued.

When BIS objected to my actions, myself and two Indian co-petitioners raised a Public Interest Litigation in the Hon'ble High Court of Delhi. Our suit went on for seven years, and then something interesting happened. During these seven years, we continued to post all the BIS standards for open access, yet during that time more and more people became aware of the standards and the sales of standards by BIS went up! But, here's the thing: Government doesn't make money selling these publications, but they are hard to procure.

It turns out BIS was losing more and

more money as their sales went up. Recognising the inefficiency of this model, a senior official in the Ministry directed that the standards be made freely available on the BIS website. This outcome aligned with the very relief that had been sought; accordingly, the matter was brought before the Chief Justice of the Delhi High Court, and a request was made to withdraw the petition. The court acceded to this request and disposed of the matter.

Parliament has recently passed the Jan Vishwas law, a move to "liberate governance from the steel cage". A recent post by business leaders Manish Sabharwal (co-founder of TeamLease) and Rahul Mathan (co-founder of Trilegal) called for the removal of "shadow instruments" – edicts that are not readily available to read. In addition to judicial decisions and primary legislation, they identify a wide array of non-statutory instruments that nonetheless carry the force of law, including regulations, circulars, master circulars, departmental and ministerial directions, office memoranda, public notices, general orders, guidance notes, advisories, press releases, schemes, consultation papers, standard operating procedures, policies, notifications, guidelines, government orders, departmental orders, and gazettes.

These instruments constitute what may properly be described as "edicts of government." Courts in other jurisdictions have affirmed that such edicts belong to the people. In the United States, the Supreme Court has held that "no man shall own the law," underscoring the principle that legal materials must remain in the public domain. Similarly, in the European Union, a constitutional bench has ruled that mandatory safety standards form an integral part of the law and that ensuring public access to them is "overriding public importance."

As part of the implementation of Jan Vishwas, Mr. Sabharwal and Mr. Mathan have suggested that all edicts of government in India be posted on a central website, such as India Code, and

that any such edict not publicly accessible should be treated as null and void. This proposal is both sound and necessary, and it ought to extend expressly to public safety standards as well.

It is important, however, to distinguish such edicts from other categories of government publications. Not all documents issued by the state carry normative or binding force; many are informational or cultural in nature, including the numerous publications produced by bodies such as the Publications Division, the National Book Trust, and the Archaeological Survey of India.

Edicts of government have a special protected place in constitutional law, but works of government are any documents issued by the state, and these public works have a special importance. I have also purchased and posted thousands of such documents from the Union and State governments, and as with edicts, have over the years received a number of takedown notices. As with the Roads Congress, I have stated my position and respectfully declined to remove the documents.

In the U.S., the "works of government" clause in the copyright act states that documents issued by the federal government are not eligible for copyright. In England, the government maintains "crown copyright" but has an open government data license permitting reuse. It would be a simple matter for India to adopt a works of government policy.

Edicts of government are the law, and must be available for democracy to function. Works of government are also vital, public knowledge paid for by the people. Making both edicts and works more readily available will enrich our society and make government ever more relevant to the citizenry. These are small steps we can all take as we walk together up that long twisted path towards a better democracy, towards that shining city on the hill.

Carl Malamud is the president and founder of Public Resource, a U.S.-based NGO and author of 9 books.

No One Should Own the Law: Why Government Standards Should Be Public

The Principle: Edicts of Government Belong to the People

- The principle that rules governing public life must be widely accessible is not new to India traces back to **Emperor Ashoka's edicts, including a 7th Pillar Edict with an extensive section on road safety**
- **“Edicts of government”** include **laws, regulations, standards with the force of law constitute the raw materials of democracy; a truly informed citizenry is indispensable to a government** “not merely for the people, but by the people”

Two Case Studies

- **Indian Roads Congress (IRC):** ostensibly **a non-profit**, but actually an arm of government subject to the RTI Act, its website maintained by the **National Informatics Centre**, its governing council dominated by government officials. **It publishes hundreds of binding road safety/construction standards**,
- **Bureau of Indian Standards (BIS):** issues over 14,000 Indian Standards covering critical public-safety areas the National Building Code, motorcycle helmet safety, drinking water, sewer systems, agricultural/textile machinery.

Issue : These edicts are not made publicly available

No One Should Own the Law: Why Government Standards Should Be Public

Comparative Practice & Way Forward

- U.S.: a “works of government” clause denies federal documents copyright protection; U.K.: “Crown copyright” exists but with an open government data licence permitting reuse; India currently has no equivalent “works of government” policy

Indian Roads Congress is the premier technical body of highway engineers which was formed in 1934 as India's national body for laying down and designing standards for roads and highway construction and provides a stage for exchanging expertise and latest research developments relating to it.

Bureau of Indian Standards (BIS) : It is the national standard body of India established under the Bureau of Indian Standards Act 2016. BIS represents India in International Organization for Standardization (ISO) and International Electrotechnical Commission (IEC). It is functioning under the administrative control of the Ministry of Consumer Affairs, Food and Public Distribution.

Stay with the Evidence: Better Monitoring of Sale of Banned Drugs Is Essential

Stay with the evidence

Better monitoring of sale of banned drugs is essential

The character of science leans to openness: to new evidence and emerging facts. Its ability to be agile to pivot and shift to newer guidelines is therefore absolutely crucial. The Health Ministry's recent ban on 16 Fixed Dose Combination (FDC) drugs comes on the evidence that these drug combinations lack therapeutic justification, are 'deemed irrational or unsafe' and might pose risks to patients. The drugs include dermatological drugs, analgesics and antispasmodics, and antibiotic-based formulations. An FDC is a drug containing two or more active pharmacological ingredients, combined in a fixed ratio in a single dosage. These were meant to improve treatment compliance in chronic conditions (such as Tuberculosis) by reducing the pill burden and, sometimes, by improved therapeutic effectiveness. However, irrational combinations, besides being ineffective, can also be counter-productive and harmful. As per the latest order, all State Drug Controllers, regulatory authorities, and enforcement agencies are to ensure strict implementation and compliance with the recent notification. Instructions must also be sent to manufacturers, importers, distributors, and even individual pharmacies, to stop stocking and selling the banned FDCs.

This is not the first time that the Health Ministry is cracking down on FDCs. A detailed scientific review is undertaken before these decisions to ban FDCs are taken. In March 2016, the government banned a whopping number of over 330 FDC drugs, on the ground that they were irrational, with immediate effect. While FDCs offer the advantage of a reduction in the number of pills, of certain benefit to certain categories of patients, there are some innate issues as well: patients might need different titrations of doses, impossible with FDCs; patients might develop allergies, but it will not be clear what particular pharmaceutical ingredient they are reacting to. It is also clear that all patients may not actually need all the drugs in the combination, exposing them to unnecessary side effects. A further potential harm exists with FDCs of antibiotics: In 2016, 19% of the 330 FDCs banned were antibiotics; There is enough evidence to show that irrational antibiotic FDC drug usage leads to or exacerbates the growing antimicrobial resistance problem in the country. While the government has taken a positive step with banning these FDCs, its work has just begun. In many instances in the past, stocks of banned drugs were still being sold in pharmacies, because the message had not percolated down. While staying solidly on the side of evidence-based medicine, the government must also activate its monitoring and supervision arm in order to ensure that the benefits from the ban reach the last mile.

Stay with the Evidence: Better Monitoring of Sale of Banned Drugs Is Essential

● The Latest Ban

- The Health Ministry has banned 16 Fixed Dose Combination (FDC) drugs on the grounds that they lack therapeutic justification, are “deemed irrational or unsafe,” and may pose risks to patients
- Banned drugs include dermatological drugs, analgesics and antispasmodics, and antibiotic-based formulations

● What is an FDC?

- **A drug containing two or more active pharmacological ingredients combined in a fixed ratio in a single dosage**
- **Intended to improve treatment compliance in chronic conditions (e.g., Tuberculosis) by reducing pill burden, and sometimes by improving therapeutic effectiveness**
- **Irrational combinations can be ineffective, counterproductive and harmful**

All drugs are made up of two core components:

- (1) Active Pharmaceutical Ingredient (API), which is the central ingredient, and
- (2) excipients.

APIs are the active components in a pharmaceutical drug that produces the required effect on the body to treat a condition.

Excipients: They are substances other than the drug that helps deliver the medication to your system. Excipients are chemically inactive substances, such as lactose or mineral oil.

The Challenge of India's Digital Sovereignty

The challenge of India's digital sovereignty

In the modern world, digital infrastructure is the track on which commerce, government, and national security run. Seen in this context, recent reports of Indian closed-circuit television (CCTV) networks being compromised by hostile entities to gain access to information on India's strategic defence assets (April 2026), along with an incident in July 2025, in which Nayara Energy was abruptly denied access to its corporate email, collaboration tools, and cloud-stored data, raise serious concerns about the future of India's digital and technological sovereignty. While the CCTV security breach was attributed to the use of the Chinese software platform EseeCloud in the CCTV equipment, the Nayara episode was a result of Microsoft Corporation's unilateral enforcement of European Union (EU) sanctions against Nayara Energy due to the stake held in it by the Russian energy giant Rosneft.

These incidents have exposed an uncomfortable reality: critical Indian digital infrastructures such as authentication systems, productivity suites, and cloud platforms operate on technology platforms owned and operated by foreign technology giants. Even when data is physically stored in India, under certain existing global data governance regimes, foreign cloud technology companies can be compelled to provide data within their possession to their home governments. As a result, effective control over digital infrastructure shifts away from Indian entities to overseas corporations and foreign governments.

Foreign control, national risk

The major implication is that the functioning of Indian businesses and critical government services built on foreign technology platforms becomes vulnerable to decisions made by external sovereigns. Directives issued by external sovereigns to deny access to critical digital technology to Indian entities could suspend government operations, collapse trade and commerce, halt manufacturing, and weaken defence capabilities.

For instance, since contemporary warfare is software-defined, the intelligence embedded in fighter aircraft, missile systems, and advanced radar installations resides not in hardware but in code that remains under the control of manufacturers answerable to foreign governments. In conflict scenarios, these manufacturers could possibly degrade targeting accuracy, reduce operational range, or worse, redirect battlefield intelligence to adversaries due to instructions from external sovereigns, all through software configuration changes. A case in point is the 1999 Kargil conflict, during which



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Digital sovereignty is essential for India's technological security and strategic autonomy

India faced limitations on access to precise GPS support at a moment when navigation and targeting in mountainous terrain were operationally decisive.

India's unique situation

The vulnerability and the risks of dependence on foreign digital infrastructure are being recognised globally. France plans to shift government departments from Microsoft Teams and Zoom to a sovereign video-conferencing platform by 2027. The Netherlands, Denmark, and several German states are exploring domestic alternatives to critical United States software and cloud services such as Microsoft Word, Excel, Outlook, and Teams. The EU is seeking to reduce its dependence on American technology through independent European cloud and IT infrastructure, while Türkiye is lessening its reliance on foreign technologies.

However, unlike other nations, India's situation is uniquely precarious when contextualised within the framework of Power Transition Theory, which posits that when a rising power, desirous of maintaining strategic autonomy, approaches parity with an established hegemon, the latter invariably acts to constrain the former. History demonstrates that rising competitors are contained or co-opted. We already see it being played out on a much larger scale between the U.S. and China. With an accelerating growth trajectory, India has been inching towards this critical zone while facing a daunting task: building its economic fortune on a technology infrastructure independent of foreign influence.

The strategy to address this challenge must be multipronged. The denial of GPS access during the Kargil conflict spurred India to develop its own satellite navigation system. More recently, efforts to strengthen the domestic semiconductor ecosystem and migrate the email systems of some central government ministries to the homegrown Zoho platform reflect a growing commitment to digital and technological sovereignty. India's success in building indigenous payments infrastructure through UPI and RuPay has shown that vulnerabilities arising from foreign-controlled systems can be overcome. This model can be extended to cloud infrastructure, e-commerce platforms, authentication systems, and defence technologies.

To de-risk dependence on foreign defence technologies, India could emulate aspects of the U.S.'s defence production and procurement model. While India has long recognised the importance of self-reliance in defence manufacturing, its heavy reliance on the public sector has not delivered the desired results. The absence of an indigenous modern fighter aircraft

despite the programme having begun in the 1980s is a stark reminder of this shortcoming. In contrast, American defence platforms are largely developed by private corporations, with the government providing research funding and assured procurement. This creates a virtuous cycle in which companies develop cutting-edge capabilities while remaining aligned with national strategic interests. India has recently begun moving in this direction by inviting private-sector participation in the development of the Advanced Medium Combat Aircraft under a competitive framework.

Another way to safeguard digital sovereignty is to develop critical technologies and digital infrastructure in partnership with other countries. This ensures mutual dependence, reducing the risk of unilateral actions that could undermine India's strategic interests. The BrahMos missile programme, jointly developed by India and Russia, is a notable example. A key advantage of this approach is that it enables India to build technological capabilities without risking international isolation, unlike China which allowed only indigenous companies to develop critical technologies. Seen in this context, two recent developments are encouraging. The first is the commencement of commercial production at Micron Technology's semiconductor Assembly, Test, Marking and Packaging (ATMP) facility in Sanand, Gujarat, established through India-U.S. technology cooperation. The second is India's decision to join Pax Silica, the U.S.-led initiative on AI and supply-chain security aimed at reducing dependence on Chinese technology and strengthening trusted technology partnerships.

Close the R&D gap

Above all, India must urgently raise its research and development (R&D) spending to levels comparable with global leaders. India's gross expenditure on R&D averaged just 0.74% of GDP between 2000 and 2020 against a global average of 2.07%. This persistent R&D spending deficit raises serious concerns about India's future technological and digital sovereignty. For a country of India's demographic scale and economic ambitions, seeking to approach parity with established powers, the question is not whether it can afford comprehensive technological sovereignty, but whether it can afford to forgo it. The extent to which India succeeds in mitigating the risks to its technological sovereignty will determine its economic competitiveness and strategic autonomy in an increasingly fragmented international order.

The views expressed are personal

The Challenge of India's Digital Sovereignty

● The Problem: Foreign-Controlled Digital Infrastructure

- Critical Indian digital infrastructure authentication systems, productivity suites, cloud platforms operates on technology owned and controlled by foreign tech giants
- Even when data is physically stored in India, foreign cloud companies can be compelled by their home governments to share data under certain global data governance regimes

● Recent Triggers

- April 2026: Indian CCTV networks compromised by hostile entities to access information on India's strategic defence assets attributed to the Chinese software platform EseeCloud used in the CCTV equipment
- July 2025: Nayara Energy was abruptly denied access to its corporate email, collaboration tools and cloud-stored data as a result of Microsoft's unilateral enforcement of EU sanctions against Nayara, due to Russian energy giant Rosneft stake in it

● Why It Matters Strategically

- Since contemporary warfare is software-defined, intelligence embedded in fighter aircraft, missile systems and radar resides in code controlled by foreign manufacturers risking degraded targeting, reduced range, or redirected battlefield intelligence
- 1999 Kargil conflict: India faced limits on precise GPS access at an operationally decisive moment, this directly spurred India to build its own satellite navigation system
- Framed using Power Transition Theory: established powers tend to constrain a rising power approaching parity already visible between the U.S. and China, and increasingly relevant to India

The Challenge of India's Digital Sovereignty

● Global & Indian Responses

- **France:** shifting government departments from Microsoft Teams/Zoom to a sovereign video-conferencing platform by 2027; the Netherlands, Denmark and German states are exploring domestic alternatives to U.S. cloud/software; the EU is reducing dependence on American tech; Türkiye is lessening reliance on foreign technologies
- **India:** strengthening the domestic semiconductor ecosystem; migrating some central government ministries' email systems to the homegrown Zoho platform; UPI and RuPay show that vulnerabilities from foreign-controlled systems can be overcome
- **Encouraging developments:** Micron's semiconductor Assembly, Test, Marking and Packaging (ATMP) facility in Sanand, Gujarat (India-U.S. tech cooperation); India joining Pax Silica, a U.S.-led initiative on AI and supply-chain security to reduce dependence on Chinese technology

● The Way Forward

- **Emulate aspects of the U.S. defence production model** private-sector participation with government R&D funding and assured procurement (India has begun this with the Advanced Medium Combat Aircraft programme)
- **Build critical technologies in partnership with other countries to create mutual dependence** (e.g., the BrahMos missile programme with Russia) unlike China's approach of relying only on indigenous companies
- **Urgently raise R&D spending:** India's gross expenditure on R&D averaged just 0.74% of GDP (2000–2020) against a global average of 2.07%

Doval Hosts NSAs of BRICS Nations Amid West Asia Tensions

Doval hosts NSAs of BRICS nations amid West Asia tensions

Doval holds talks with Iran official Ghadir Nezamipour and Chinese Foreign Minister Wang Yi at meeting to survey global security issues

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Developments in West Asia formed the dominant backdrop as National Security Adviser (NSA) Ajit Doval hosted his counterparts from BRICS grouping in New Delhi for the BRICS NSAs meeting.

Mr. Doval met Ghadir Nezamipour, Deputy Secretary for Defence Affairs of Iran's Supreme National Security Council (SNSC), Chinese Foreign Minister Wang Yi, and Secretary of Multilateral and Political Affairs of Brazil Carlos Cozende among others who are here to attend the two-day event that will survey the security architecture of the world.

"Both sides reviewed the ongoing situation in West Asia. They also discussed cooperation under the BRICS platform and India-Iran bilateral ties," said the Ministry of External Affairs (MEA) after Mr. Doval met Mr. Nezamipour.

The MEA said the meeting between Mr. Doval and Mr. Wang was "forward looking" and added, "The two sides reviewed recent developments in bilateral relations and noted pro-



National Security Advisor Ajit Doval and Deputy Secretary for Defence Affairs of Iran's SNSC, Ghadir Nezamipour in New Delhi. PTI

gress towards gradual normalisation. The NSA underlined that stable, predictable and constructive bilateral relations contribute to building of trust and better understanding between the two sides."

Tehran and Beijing

The Iranian delegation held a detailed meeting with the Chinese side on the sidelines of the BRICS meeting, informed the Embassy of Iran. Mr. Nezami "expressed appreciation" for "China's political support and emphasised the importance of strengthening the strategic partnership between Tehran and Beijing, as well as Iran's readiness to respond to any potential threats."

"China's Foreign Minister reaffirmed support for Iran's security and territorial integrity, welcomed the improvement of Iran's relations with regional countries and expressed Beijing's willingness to contribute to diplomatic efforts aimed at promoting regional stability," said the Iranian Embassy, informing that the two sides will continue to "maintain close consultations".

The June 22-23 meeting of the NSAs of the BRICS countries will focus on 'non-traditional security challenges confronting the world today'. The meeting will include a review of the outcomes of BRICS Joint Working Groups on Counter-Terrorism.

Doval Hosts NSAs of BRICS Nations Amid West Asia Tensions

The acronym originally stood for Brazil, Russia, India, and China, with South Africa joining later in 2010.

The term BRIC was first coined by economist Jim O'Neill in 2001. The group began formal cooperation at the 2006 G-8 Outreach Summit and held its first official summit in Russia in 2009.

Expansion of Membership: The group expanded in 2024 with the addition of Egypt, Ethiopia, Iran, and the UAE. Indonesia joined in 2025.

New Development Bank (NDB): NDB is a multilateral development bank established by BRICS countries in 2015 to mobilise resources for infrastructure and sustainable development projects in emerging markets and developing countries (EMDCs). Membership is open to United Nations members, with Bangladesh (2021), United Arab Emirates (2021), Egypt (2023), and Algeria (2025) joining as new members.

The NDB has an initial authorised capital of USD 100 billion. The five BRICS founding members each hold equal voting shares, with 20% of the capital each at establishment, and they are guaranteed to retain at least 55% of the institution's voting rights, even as new members join.

BRICS represents about 45% of the world's population and accounts for 37.3% of global GDP (in purchasing power parity terms), collectively surpassing the economic share of the G7 (29.3%).

Headquarters : Shanghai

Doval Hosts NSAs of BRICS Nations Amid West Asia Tensions

Q. Consider the following statements: (2016)

1. New Development Bank has been set up by APEC.
2. The headquarters of the New Development Bank is in Shanghai.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

Thank You